

26CV01074 Marcus Millichap Real Estate Investment Services Inc vs Kevin Boeve

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-08-14

Motion: Petition Confirm Arbitration

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Tentative Ruling: Marcus Millichap Real Estate Investment Services Inc vs Kevin Boeve

Case Number

26CV01074

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 08/14/2026 - 10:00

Nature of Proceedings

Petition Confirm Arbitration

Tentative Ruling

This action was initiated when petitioner Marcus & Millichap Real Estate Investment Services, Inc., filed a petition on February 18, 2026, to confirm an arbitration award in the amount of \$378,545.09 in favor of petitioner and against respondent Kevin Boeve. An initial hearing was set for this petition to take place on June 26, 2026. (Not. of Hearing, filed March 5, 2026; Minute Order, June 26, 2026.) The court's minutes reflect that respondent appeared remotely at this June 26 hearing, but petitioner did not attend. (Ibid.) Respondent has not filed any documents in this action. (Minute Order, June 26, 2026.) There is no indication in the court's records that any substantive arguments were presented by respondent at the June 26 hearing. (Ibid.) At the June 26 hearing, the court continued the hearing on the petition to this August 14 hearing. (Ibid.) No party has filed any documents since the June 26 hearing. The arbitration agreement attached to the petition does not indicate a method of service or notice. (See Pet., attach. 4(b) at pp. 7-9, ¶ 21(a)-(f).) "If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: [¶] (1) Service within this State shall be made in the manner provided by law for the service of summons in an action. [¶] (2) Service outside this State shall be made by mailing the copy of the petition and notice and other papers by registered or certified mail. Personal service is the

equivalent of such service by mail. Proof of service by mail shall be made by affidavit showing such mailing together with the return receipt of the United States Post Office bearing the signature of the person on whom service was made. Notwithstanding any other provision of this title, if service is made in the manner provided in this paragraph, the petition may not be heard until at least 30 days after the date of such service." (Code Civ. Proc., § 1290.4, subd. (b).) "If the arbitration agreement does not provide the manner in which such service shall be made and the person on whom service is to be made has previously appeared in the proceeding or has previously been served in accordance with subdivision (b) of this section, service shall be made in the manner provided in Chapter 5 (commencing with Section 1010) of Title 14 of Part 2 of this code." (Code Civ. Proc., § 1290.4, subd. (c).) The court will require that service be effectuated on respondent pursuant to Code of Civil Procedure section 1290.4. Petitioner has the burden to demonstrate service. (See Evid. Code § 500.) The court will order this matter off-calendar, subject to being reset after petitioner has effectuated service on respondent pursuant to Code of Civil Procedure section 1290.4 and filed proof of service with the court.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

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